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UNITED STATES INTERNATIONAL TRADE COMMISSION

Washington, D.C.

In the Matter of

CERTAIN WEARABLE DEVICES

Investigation No. 337-TA-1478

ORDER NO. 16: INITIAL DETERMINATION:

**(1) GRANTING SAMSUNG’S MOTION FOR SUMMARY
DETERMINATION OF SATISFACTION OF THE
TECHNICAL PRONG OF DOMESTIC INDUSTRY
REQUIREMENT AS TO THE ’677 AND ’675 PATENTS**

**(2) DENYING SAMSUNG’S MOTION FOR SUMMARY
DETERMINATION OF INFRINGEMENT AS TO THE ’677
AND ’675 PATENTS**

(September 3, 2026)

Complainant Samsung moves for summary determination of satisfaction of the technical prong of the domestic industry requirement and infringement for the asserted claims of U.S. Patent Nos. 10,945,677 and 10,231,675.¹ Motion Docket No. 1478-09 (EDIS Doc. ID 887878) (Mot. (Attachment ID 2580246) and Memo. (Attachment ID 2580248) and *see* Statement of Undisputed Material Facts (Attachment ID 2580247). Oura partially opposes, stating that “with respect to the technical prong of the domestic industry requirement,” the motion is not opposed. Opp. at 1, n.1 (EDIS Doc. ID 889195) and *see* Resp. SUMF. Samsung replied. Reply (EDIS Doc. ID 889645). For the reasons below, the motion is GRANTED as to the technical prong of the domestic industry

¹ Claims 14 and 16–20 of the ’675 patent and claims 4–7, 10–14, and 16–20 of the ’677 patent were terminated from the investigation. Order No. 12 (EDIS Doc. ID 889677), *unreviewed by* Comm’n Notice (EDIS Doc. ID 892902). The motion is DENIED-AS-MOOT as to those claims. Claims 1–3 and 9 of the ’677 patent and claims 13 and 15 of the ’675 patent remain asserted. Order No. 12 at 2.

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requirement for claim 9 of the '677 patent claims 13 and 15 of the '677 patent and DENIED as to infringement.

Summary determination “shall be rendered if pleadings and any depositions, answers to interrogatories, and admissions on file, together with the affidavits, if any, show that there is no genuine issue as to any material fact and that the moving party is entitled to a summary determination as a matter of law.” 19 C.F.R. § 210.18(b). At the summary determination stage, “evidence is to be viewed in a light most favorable to the non-movant, and all reasonable inferences must be drawn in favor of the non-movant.” *Certain Computing Devices Utilizing Indexed Search Systems and Components Thereof*, Inv. No. 337-TA-1389, Comm’n Op. at 10–11 (Nov. 6, 2024) (EDIS Doc. ID 836574), citing *Anderson v. Liberty Lobby, Inc.*, 422 U.S. 242, 255 (1986).

The asserted domestic industry products are Samsung’s Galaxy Watch4, Watch5, Watch6, Watch7, Watch Ultra, Watch8, and Ring. Mot. at 2. Samsung’s arguments and evidence in support of the technical prong of the domestic industry requirement, including portions of the report of Samsung’s expert, are uncontested. Memo. at 22–24, SUMF #49–55, and Resp. SUMF at #49–55 ('677 patent claim 9); Memo. at 26–28, SUMF at #51 and 62–68, and Resp. SUMF at #51 and 62–68 ('675 patent claim 13); and Memo. at 29, SUMF #69, and Resp. SUMF #69 ('675 patent claim 13). Upon review of Samsung’s motion, supporting memorandum, statement of undisputed material facts, and accompanying exhibits, and Oura’s opposition and its response to Samsung’s statement of undisputed facts, the evidence supports that there is no genuine issue as to any material fact that claim 9 of the '677 patent and claims 13 and 15 of the '675 patent are practiced by the domestic industry products. The undisputed facts identified at SUMF #49–55 and 62–69 are adopted. Motion No. 1478-09 is GRANTED as to the technical prong of the domestic industry requirement for claim 9 of the '677 patent and claims 13 and 15 of the '675 patent.

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The accused infringing products are the Oura Ring 4, Ring 5 (also called [REDACTED]), and [REDACTED]. Mot. at 1. There are genuine issues of material fact because it is unclear that the evidence demonstrates at least that the accused products have a claimed “light emitting unit” (’677 patent, claim 1) or “second sensor” (’677 patent, claim 9 and ’675 patent, claim 13) that “refrain[s] from emitting of the light, based at least in part on a determination that the second motion signal does not satisfy the specified condition” (’677 patent, claim 1), “refrain[s] from the obtaining of the second information using the activated second sensor based at least in part on a determination that the first information satisfies a specified range” (’677 patent, claim 9), or is “inactivat[ed]” “in response to identifying that the motion of the electronic device included in the second information is more than a threshold motion” (’675 patent, claim 13). ’677 patent at claims 1 and 9 and ’675 patent at claim 16; Resp. SUMF #10, 20, and 36.

As to claim 1 of the ’677 patent and claim 13 of the ’675 patent, the parties dispute whether the claimed “light emitting unit” or “second sensor” is the optical photoplethysmography (PPG) sensor in the Oura Ring 4, as Oura contends, or whether they are the SpO₂-sensing portion of the PPG sensor that uses only green and infrared light-emitted diodes of the PPG sensor, as Samsung contends.

As to claim 9 of the ’677 patent, Samsung’s expert opines that Oura’s PPG/SpO₂ sensor is the claimed second sensor, Mot. Ex. 1 at ¶ 448, and opines that the second sensor is activated based on movement, that is, if movement is below a certain threshold, *id.* at ¶ 457, and if the finger is at rest, *id.* at ¶ 462. Element 9[f] recites “refrain from the obtaining of the second information *using the activated second sensor* based at least in part on a determination the first information satisfies a specified range.” ’677 patent claim 9 (emphasis added). Samsung contends that the Oura 4 meets this element by deactivating the SpO₂ sensor. Mot. Ex. 1 at ¶¶ 475–76. There is question of fact

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on whether Samsung has shown that the “refrain” operation is performed “using the activated second sensor” where Samsung contends that deactivation of the second sensor causes the refrain operation to occur.

Motion No. 1478-09 is GRANTED-IN-PART. Summary determination of satisfaction of the technical prong of the domestic industry requirement is GRANTED. Summary determination of infringement is DENIED.

This initial determination shall become the determination of the Commission unless a party files a petition for review or the Commission orders review on its own motion. 19 C.F.R. §§ 210.42(d) and 210.42(h).

SO ORDERED.



Doris Johnson Hines
Administrative Law Judge